

BEFORE THE COLORADO BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

Case No.: 2009-003222

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE
TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF
SUSAN COMEAU-NGUYEN, LICENSE NO.: LPC-4426,

Respondent.

IT IS HEREBY STIPULATED by and between the Colorado Board of Licensed
Professional Counselor Examiners ("Board") and Susan Comeau-Nguyen, ("Respondent") as
follows:

1. Respondent was licensed to practice as a Professional Counselor in the State of
Colorado on August 25, 2006, having been issued license number LPC 4426, and is
currently so licensed.
2. The Board and the Director have jurisdiction over Respondent and the subject matter
of this Stipulation and Final Agency Order ("Order").
3. It is the intent of the parties and the purpose of this Order to provide for a settlement
of all matters arising out the complaint arising in case number 2009-003222 without
the necessity of holding a formal hearing. This Order is a full and final resolution of
case number 2009-003222. This Order does not resolve any other cases, complaints,
or matters, known or unknown to the Board or Respondent, as of the effective date of
this Order.
4. Applicant admits the following:
 - a. On or about June 16, 2007, Respondent failed to report alleged abuse of a
minor child.
 - b. On or about June 16, 2007, Respondent failed to document and maintain
adequate case notes regarding the alleged abuse of a minor child.

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MENTAL HEALTH BOARD

5. By virtue of the facts admitted in paragraph 4 above, Respondent admits and the Director finds that the above conduct is a violation of §12-43-222(1)(g) (l) & (u), C.R.S.

...

12-43-222. Prohibited activities - related provisions.

(l) A person licensed, registered, certified, or regulated under part 3, 4, 5, 6, 7, or 8 of this article is in violation of this article if such person:

...

(g) Has acted or failed to act in a manner that does not meet the generally accepted standards of the professional discipline under which such person practices. A certified copy of a malpractice judgment of a court of competent jurisdiction shall be conclusive evidence of such act or omission, but evidence of such act or omission shall not be limited to a malpractice judgment.

...

(l) Has failed to refer a client to an appropriate practitioner when the problem of the client is beyond such person's training, experience, or competence;

...

(u) Has falsified or repeatedly made incorrect essential entries or repeatedly failed to make essential entries on patient records;

CONTINUING EDUCATION

6. During the six (6) months immediately following the execution of this Stipulation and Agency Order, and no later than December 15, 2009, Respondent must successfully complete at least twelve (12) hours of Board-approved professional continuing education courses in the areas of record keeping and reporting requirements. Respondent shall obtain Board approval of the courses **prior** to enrolling in each course. Upon completion of a course, the provider is to mail to the Board a certificate of completion.

TERMS AND CONDITIONS

7. Respondent will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that he practices in accordance with the generally accepted standards of practice.
8. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing Professional Counseling, unless such supervision or consultation is monitored in accordance with this Order.
9. In the event Respondent relocates at any time during the probationary period, Respondent shall notify the Board of the change of address within 30 days of the effective date of such change.
10. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to §§12-43-212 and 24-4-104(9), C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

11. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to a formal hearing on all matters herein.
12. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board Order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal hearing pursuant to §§12-43-212, 12-43-224, and 24-4-104(9), C.R.S.
13. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.
14. Respondent shall obey all state and federal laws while this Order is in effect.
15. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.
16. This Order shall become effective when accepted and signed on behalf of the Board.
17. This Order shall be admissible as evidence at any hearing held before the Board.
18. This Order shall be a public record in the custody of the Board.

ACCEPTED AND AGREED BY:
RESPONDENT

Susan R. Comeau-Nguyen
Susan Comeau-Nguyen, *LPC*
License No.: LPC 4426

ACCEPTED AND ORDERED BY:
For The Director of Registrations,
Colorado Board of Licensed Professional
Counselor Examiners

Carlotta D. Knox
Carlotta D. Knox, Program Director

Effective Date: This 23rd day of
June, 2009.